

## DECLARATION OF ROBERT J. WILLIAMS

I, Robert J. Williams, hereby declare as follows:

1. I represent Respondent Dependable Highway Express, Inc. (“DHE”) in numerous ongoing matters and am counsel of record for DHE in this proceeding.
2. I am authorized to make this Declaration in support of DHE’s Petition for Attorneys’ Fees.
3. I performed the large majority of the work in this proceeding, with additional support provided by Brad Hughes and Elizabeth Evans of Clark Hill’s Los Angeles office, who are counsel of record for DHE in the federal court action referenced in this Petition.
4. I am a transportation and logistics specialist and have spent most of my career in the oceanfreight, airfreight, warehousing, and trucking industries. In 2024, I was 39 years out of law school and my lodestar rate is \$740 per hour.
5. In 2024, Brad Hughes was 18 years out of law school and charged a rate of \$450 per hour, reflecting a 45% discount from his standard billing rate for that time period of \$815 per hour.
6. In 2024 Elizabeth Evans was 13 years out of law school and charged a rate of \$390 per hour, reflecting a 33% discount from her standard billing rate for that time period of \$575 per hour.
7. The total hours spent by me on for DHE’s Rule 12(b)(6) motion and related briefing were 55.7 hours, totaling \$41,218.00, which included: (i) assessing the Complaint and preparing related response strategy; (ii) conferences between counsel representing DHE in the federal court action and counsel representing DHE before the Commission, (iii) conferring with DHE’s corporate and finance departments regarding the Complaint; (iv) researching the applicable law and regulations; (v) drafting, finalizing, and filing DHE’s Rule 12(b)(6) Motion; (vi) reviewing ICL’s Opposition to DHE’s Motion, (vii) researching, drafting, finalizing and filing DHE’s Reply to ICL’s Opposition to DHE’s Motion, (viii) reviewing ICL’s dismissal of MSC from the proceeding, (ix) researching the Commission’s Final Rule on Detention and Demurrage, and (x) status reporting to DHE.
8. The total hours spent by me on the preparation and filing of the Answer to the Complaint including Affirmative Defenses, including conferences with co-counsel, were 3.9 hours, totaling \$2,886.00.
9. The total hours spent by me after the proceeding was at issue but before the Stipulation for Dismissal were 21.7 hours, totaling \$16,058.00. This included (i) revising spreadsheets

showing the detention amounts due, the interest charged, and the reduction in amounts due and the halting of accrual of interest based on refunds received from MSC; (ii) correspondence with MSC's counsel regarding waivers of detention charges and refunds issued and to be issued; (iii) CADRS dispute resolution, (iv) preparation of the Joint Status Report., (v) conferences with DHE and co-counsel regarding the propounding of discovery, (vi) conferences with DHE and co-counsel regarding responses to ICL discovery, (vii) conferences with co-counsel and preparation of Initial Disclosures, and viii) status reporting to DHE.

10. The total hours spent by me during the dismissal stage of the proceeding were 2.6 hours, totaling \$1,924.00. This included reviewing and assessing all of MSC's and ICL's proposed terms and conditions of the Stipulation of Dismissal with prejudice and related correspondence between the parties, conferences with co-counsel, and status reporting to DHE.
11. Attorney Hughes spent approximately 5 hours assisting me in various stages of this proceeding, totaling \$2,250.00. Attorney Evans spent approximately 15 hours assisting me in various stages in this proceeding, totaling \$5,850.00.
12. The total fees incurred by DHE in its defense of ICL's Complaint, not including the fees incurred in researching and drafting this Petition, total \$70,186.

I hereby verify under penalty of perjury that the facts contained in the foregoing Declaration are true and correct to the best of my knowledge, information and belief.

Dated: August 30, 2024



**Robert J. Williams**

CERTIFICATE OF SERVICE

I certify that on the 30th day of August, 2024, a true and correct copy of the foregoing

**RESPONDENT DEPENDABLE HIGHWAY EXPRESS, INC.'S  
PETITION FOR ATTORNEYS' FEES**

was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020, and on

Federal Maritime Commission  
Office of the Secretary  
[secretary@fmc.gov](mailto:secretary@fmc.gov)

**ATTORNEY FOR RESPONDENT DEPENDABLE HIGHWAY EXPRESS, INC.**



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